

MASTER SERVICES AGREEMENT

Effective Date: June 25, 2026

PREAMBLE & PARTIES

This Master Services Agreement ("Agreement") is entered into and made effective as of the date first written above, by and between Nexus Tech Solutions LLC, with its principal place of business at 100 Innovation Way, San Francisco, CA 94107 ("Service Provider"), and Apex Enterprise Systems Corp, located at 500 Commerce Boulevard, New York, NY 10001 ("Client").

SECTION 1: SCOPE OF SERVICES

Service Provider shall perform the consulting, engineering, and support services described in detail in Statement of Work #1 annexed hereto. All deliverables shall be completed in accordance with the schedules and milestones agreed upon in the SOW.

SECTION 2: FEES, PAYMENT & BILLING TERMS

In consideration of the services rendered, Client shall pay Service Provider on a monthly basis. All invoices shall be issued on the 1st of each month and are payable Net 30. Payment Terms enforce a late fee of 1.5% interest per month on any outstanding balance. Total professional service fees under SOW #1 shall not exceed an initial budget of \$120,000 USD.

SECTION 3: TERM & TERMINATION PROTOCOL

This Agreement shall commence on the Effective Date and remain active until its formal Expiration Date set for December 31, 2029, unless terminated earlier in accordance with this Section. Either party may terminate this Agreement for convenience by providing a written notice of at least 45 Notice Days to the other party. Upon termination, Client shall pay for all services rendered up to the date of termination.

SECTION 4: GOVERNING LAW & JURISDICTION

This Agreement, and all claims or causes of action arising hereunder, shall be governed by, construed, and enforced in accordance with the laws of the State of California, without regard to its conflict of laws principles. Any legal proceedings related to this contract shall be brought exclusively in the state or federal courts located in San Francisco County, California.

SECTION 5: LIMITATION OF LIABILITY

EXCEPT FOR CLAIMS ARISING OUT OF INDEMNIFICATION OR GROSS NEGLIGENCE, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY CONSEQUENTIAL, INDIRECT, SPECIAL, OR PUNITIVE DAMAGES. THE MAXIMUM CUMULATIVE LIABILITY LIMIT OF SERVICE PROVIDER TO CLIENT FOR ALL CLAIMS OR BREACHES ARISING UNDER THIS AGREEMENT IS STRICTLY LIMITED TO \$500,000 USD.

SECTION 6: CONFIDENTIALITY & NON-DISCLOSURE

Each party agrees to maintain the strict confidentiality of all Proprietary Information received from the other party. Confidentiality terms are fully included and enforced. Neither party shall disclose, reproduce, or use the other party's Confidential Information for any purpose outside the scope of this contract without prior written consent.

SECTION 7: WARRANTIES & REMEDIES

Service Provider warrants that the services will be performed in a professional, workmanlike manner in accordance with standard industry practices. The active Warranty Period is set at 12 months from the date of delivery. In the event of a breach of this warranty, Client's sole remedy shall be re-performance of the defective services.

SECTION 8: DISPUTE RESOLUTION & ARBITRATION

Any dispute arising out of or related to this Agreement shall be resolved through binding arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules. The arbitration ruling shall be final and binding on both parties.

Nexus Tech Solutions LLC (Service Provider)

Apex Enterprise Systems Corp (Client)

Signature: _____

Signature: _____

Name: Jane Doe, CEO

Name: John Smith, CTO